

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA
and THOMAS E. DESOUSA,
Plaintiffs,

-against-

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,
Defendants.

Index No: 600371/2021

AFFIDAVIT IN OPPOSITION
PLAINTIFF'S SUMMARY
JUDGMENT MOTION

-----X
State of New York >
> ss.:
County of Suffolk >

RICHARD A. CALVAGNO II, being duly sworn, deposes and says that:

1. I am a Defendant in the above action, fully familiar with all the facts set forth herein. I submit this affidavit in opposition to Plaintiffs' Notice of Motion seeking summary judgment dismissing my five (5) counterclaims.

2. On or about January of 2021 the Plaintiffs commenced the underlying action against me (and my co-defendant who has never lived in the home, who Plaintiffs have never met and who Plaintiffs have not charged with any conduct) alleging *us* nuisances for *my* driving a loud car and other petty complaints about my lifestyle. As Plaintiffs' prior and subsequent slurs made clear, the Plaintiffs' action was itself the nuisance (despite the completion of discovery and depositions, Plaintiffs have still failed to provide any repeatedly requested police reports, citations, summonses, expert witness decibel readings or other credible proof of the nuisance/tort actions they accuse me of being) thus proving that the real motivation for this action, to wit: Plaintiffs' prejudice and hate.

3. This action, seeking to restrain my freedoms, was borne of Plaintiff's prejudice.

4. As a proud gay man, I counterclaimed against Plaintiffs, citing their abject bias as the real motivation for this lawsuit (that, again, they have still failed to provide any proof of, even after the completion of discovery and depositions.)

5. In their underlying motion practice seeking summary judgment to dismiss my counterclaims, the Plaintiffs hide their biases (or at least Mr. DeSousa's; I candidly admitted that Mrs. DeSousa, unlike her husband who called me a "homo" and "faggot," was always respectful to me), behind my inability to capture his horrid hate-filled slurs on video or other recorded device (and my testimony about Mr. DeSousa's slanderous speech *after* service of the papers, *infra*.) **Just because I didn't produce videos capturing Mr. DeSousa's hate-speech, doesn't mean it didn't happen or, for that matter, that Plaintiff's hate didn't motivate this ridiculous lawsuit against me.** Plaintiff's speech, spoken before and after the official "commencement" (*infra*) of this action, proves his prejudices and the motives behind this meritless lawsuit attacking me as a public and private "nuisance." I am not the nuisance (nor am I guilty of the fraud) Plaintiff alleges. Plaintiffs are.

6. My attorney's annexed affirmation in opposition identifies the **FATAL DEFECTS** of Plaintiff's motion practice including:

A. Plaintiff's failure to annex a copy of the pleadings he seeks to dismiss; and

B. The fact that Plaintiff's Notice of Motion states that it is supported only by the affirmation of his attorney (who has no personal knowledge of the facts; see my attorney's affirmation noting the controlling law thereon) and his annexation of Exhibits D and E¹, that notably **were not provided in discovery**; dare I suggest that counsel of all people, knows better than to annex, rely upon or testify as to exhibits the Plaintiff failed to produce in discovery.)

¹ In paragraph 35 of his affirmation counsel testifies "Annexed hereto as Exhibit D is a police report from Plaintiff's neighbor made on February 18, 2022 ... Additionally annexed hereto as Exhibit E are e mail communications between Plaintiff and two former neighbors, Pat Schneider and James Veneziano complaining about the noise generated from Calvagno's car." The e mails, appearing unmarked, at page 229 of his 409 page motion are dated in 2022. Mr. CAMARDA testified at his deposition that the Plaintiff and those "two former neighbors, Pat Schneider and James Veneziano" were suing Mr. CAMARDA as well. Not insignificantly, they did not join in Plaintiffs' lawsuit.

THE FEIGNED “FRAUD”

7. Nonetheless, and quite incredibly, counsel accuses me of “committing a fraud” by stating in my Verified Answer and Counter-Claims that Plaintiff (Mr. DeSousa) called me a “faggot,” “homo” and other intolerant slurs, but that I testified at deposition (Plaintiff’s Exhibit P. 167) that “Prior to me being served with the papers we never had any negative interactions.” With incredulity, counsel complains that the specific slurs and conduct I complained about in my cross claims, post-dated service of Plaintiff’s Verified Complaint?!

8. I am not an attorney. I am not familiar with the names of “papers” that “commenced this lawsuit,” and I cannot distinguish between grievances Plaintiff lodged in all his various complaints. To be clear however, the “papers” Mr. INDUSI (not Mr. CUOMO whose affirmation supports the underlying motion; other attorneys conducted the depositions) questioned me about and the papers my answers referred to, were not the same. In my mind, this saga began when the Plaintiffs summoned to my home the police and other local officials who provided me with complaints and papers (that notably failed to cite or punish me for any of the complaints Plaintiffs relentlessly made to the police and other officials, along with neighbors whom he had tried to enlist in the commencement of this lawsuit.) I have since learned that counsel was referencing the service of the Summons and Complaint in an attempt to twist the truth and my testimony.

9. Indeed, it is clear from my testimony that many of the papers and “altercations” we exchanged, pre-dated the service of the Verified Complaint².

² In paragraph 8 counsel testifies that “Plaintiffs commenced this action by way of Summons and Complaint... on January 8, 2021. Calvagno interposed his Counterclaims on January 27, 2021.” I don’t recall the date I was served, but will take counsel’s word on the dates, noting that in the 19 days between the two (2) dates, the Plaintiff and I exchanged MANY words, including quite possibly, allegations set forth in my counter-claims.

Either way, at deposition on August 1, 2023 I repeatedly testified, commencing at R. 145 and answering Plaintiffs’ questioning about the Counterclaims by way of example but not limitation, that the altercations we had predated the “Verified Complaint.” For example:

P. - 146 “It was an argument in the street we had a few years ago” ie before commencement

10. I was clearly confused, but when read in its entirety and context, my August 1, 2023³ deposition testimony makes it clear that my counterclaims complained of Plaintiff's hate filled attacks upon me before service of "Verified Complaint" counsel refers to. Beginning at p 144, Mr. INDUSI states "I want to ask you some questions about the counterclaims you made in your answer." He then inquires at P. 145, referring to "counterclaim number two first":

Q. How do you prefer to refer to your sexual preference?

A. What do you mean?

Q. Do you consider yourself openly gay?

A. Yes.

Q. You've indicated in 14th that the Plaintiffs are morally offended by your homosexuality?

A. Yes.

Q. How did you come to believe that?

A. When I got into an argument with Mr. DeSousa in the street. He called me a stupid faggot and told me he's going to fuck me where I breathe.

Q. Do you recall when this happened?

A. **I don't remember the date.** It was an argument in the street we had a few years ago." (ie 2020, before the 2021 commencement of the action.)

11. As both Plaintiffs' and my testimony makes clear, Plaintiff started complaining about the noise from my car, the whopping two (2) parties I had at my home, construction debris and

P. - 147 regarding Plaintiffs' harassment "Q. When was this? A. Probably two to three years ago" ie before commencement;

P. 152 "Q. You've indicated that Mr. DeSousa called you a faggot in the street... A few years back" ie before commencement;

P. 157 "Q. The slurs that you claim Mr. DeSousa used with you in the street, sitting here today, you said it was two or three years ago? Yes

I also testified to Mr. DeSousa chasing me in his Porsche, a car he owned when I first moved in and before my Answer was prepared.

³ See Plaintiff's **Exhibit "B"**, 08/01/2023 transcript commencing from page 120.

allowing our neighbor to store his boat (with whom I discovered at the third party deposition of Mr. CAMARDA, noticed by Plaintiffs, that Plaintiffs had a beef with him too and were also suing Mr. CAMARDA) long before the underlying action was commenced. I received copies and papers on all those complaints, (although I did not receive a copy of the Petition⁴ that Mr. CAMARDA testified about or that other neighbors told me (R. 155) Mr. DeSousa had circulated in our neighborhood.) Not insignificantly, Mr. DeSousa did not provide a copy of that Petition in answer to discovery, much like he did not provide the communications he references **now, for the first time, after discovery was completed, *infra***, in paragraph 35 of his attorney's affirmation.

12. I also testified at R. 147, *et. seq.*:

A. "Not so much Diane. She's never really done anything. She has always been respectful.

Mr. DeSousa used to have a blue Mercedes that he used to start at 3:00 and 4:00 in the morning, rev in his driveway, and race up and down the block numerous times and then park it back in his driveway. His grandson had a car like mine, a version down. The grandson went to jail. The car stayed at his house and he used to rev the car pretending it was me so neighbors would think it was me.

⁴ Plaintiffs actually noticed VINCENT CAMARDA for a third party deposition (annexed as **EXHIBIT "A"**) Mr. CAMARDA confirmed Mr. DeSousa's prejudicial slurs about me and his knowledge of Mr. DeSousa's efforts to enlist neighbors to join in the commencement of the underlying lawsuit.

I also testified at my August 1, 2023 deposition that other neighbors had told me he used prejudicial slurs about me when he was trying to get them to sign his Petition. P. 155:

"Q. What other neighbors has Mr. DeSousa approached slandering you with prejudicial slurs?

A. All sorts of neighbors.

Q. Do you know their names?

A. He approached Vinny. He approached Jackie and John trying to get them to sign a petition and they wouldn't sign.

Q. What was the petition for?

A. Something about my house. They didn't get into the details with me. I don't know what it was. It was about this lawsuit. He wanted them to be part of the lawsuit and they wouldn't be a part of it.

Q. Did you see the petition personally?

A. No. It may not have been a petition. It could be the wrong word I am using. I don't want to mislead you."

Q. When was this?

A. Probably two to three years ago.

Q. Other than your word, do you have any other evidence of these --

A. My parents lived at my house at that time. They both witnessed it.

....

P. 148:

Q. The car that Mr. DeSousa's grandson owns that you're referencing --

A. Owned.

Q. -- is it the same color as yours?

19 A. Yes.

Q. What is --

A. Black Charger. His was a 392, not a Hellcat.

Q. A different exhaust I assume?

A. It's pretty much the same exhaust. I notice in my personal opinion that the 392 is a little bit louder for some reason. I don't know why. It may be something different in the exhaust. I am not sure what Dodge does.

Q. Revving the blue --

A. Blue Mercedes.

Q. -- and the Charger --

A. Yes.

Q. -- were the two things that you believe were designed to harass and annoy you?

A. Yes, especially at three and four o'clock in the morning when people are sleeping.

P. 163

Q. How did he harass and menace you?

A. Tailgating me. Flashing his lights at me.

Q. This is all that same day; this is one occasion we are talking about?

A. One occasion, yes.

Q. You're saying during that one occasion he tailgated you and flashed his lights at you?

A. Yes.

Q. It also indicates here he followed you to your place of employment where he screamed obscenities. Your testimony here today is that he did not actually follow you to your place of employment?

A. He did not -- no, I drove too fast and he couldn't catch me pretty much.

Q. What obscenities did he scream to you on that day?

A. Fuck you. Mother fucker.

Q. How did you hear him scream those obscenities if you're in the car in front of him?

A. My windows were down....

P. 165:

Q. You don't recall sitting here today when that alleged pursuit terminated?

A. I don't remember what day it was. No.

Q. Where that alleged pursuit terminated? In other words, was it on the Meadowbrook, was it on Merrick Road, was it on -- Southern State or Main Street.

A. I am not sure which way I took. It all depends on traffic.

Q. At some point you looked in your rearview mirror and the Jaguar was not there?

A. Correct.

Q. Did you call anyone at the time before, at any time before, the pursuit terminate to report that your neighbor Mr. DeSousa was following you?

A. No.

Q. Did you take any photographs or videos or recordings of Mr. DeSousa on that day when you claim he followed you?

A. No. I can't use my camera when I am driving the car.

Q. You can, right, but you're not supposed to.

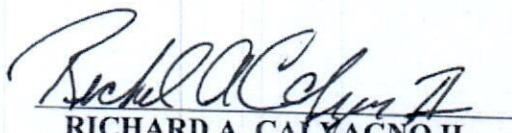
13. As any reasonable person could assume and as the Plaintiffs themselves concede, they made multiple complaints to and about me long *before* the commencement of the action. We shared some very nasty words *before* the commencement of this action and even more nasty words after the Plaintiffs commenced this action and before I signed my Answer. I might have been confused about the “complaints” and “papers” that commenced the action versus those complaints and police reports Plaintiffs filed before the actual “commencement” of this “action” but my deposition testimony clearly set forth Plaintiff’s prejudicial slurs, the identity of third parties who were aware of Mr. DeSousa’s complaints about me and efforts Plaintiffs made to restrict my freedoms in the neighborhood from third parties who notably have not joined in the commencement of this action.

14. I resent the Plaintiffs’ counsels attempts to twist my testimony and the truth. I am not guilty of any fraud, I am not the nuisance Plaintiffs insist (see my motion for summary judgment) and I am not deserving of Mr. DeSousa’s wrath and hate, expressed in his pursuit of this ridiculous lawsuit!

15. I respectfully refer this Court's attention to the affirmation of my attorney addressing the merits of my counterclaims and the sufficiency of my pleadings and proof to deny Plaintiff's motion for summary judgment dismissing the counterclaims.

WHEREFORE, your Defendant prays for an order denying Plaintiff's Notice of Motion in its entirety, together with such other and further relief as to this Court may seem just and proper.

I affirm on this 18 day of June, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the forgoing is true, and I understand that this document may be filed in an action or proceeding in a Court of Law.


RICHARD A. CALVAGNO II